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June 3, 4, 10, 2019

No. 18–7807. *YOUNG v. KRAUS ET AL.*, 587 U.S. 924;
No. 18–7885. *VANGUILDER v. MARTUSCELLO*, SUPERINTEND-
ENT, COXSACKIE CORRECTIONAL FACILITY, 587 U.S. 944;
No. 18–8184. *SHARP v. DOLAN*, 587 U.S. 975; and
No. 18–8194. *HENDERSON v. COLLINS*, WARDEN, 587 U.S. 949.
Petitions for rehearing denied.

No. 18–7408. *LEONARD v. GEORGE WASHINGTON UNIVERSITY
HOSPITAL ET AL.*, 586 U.S. 1244. Petition for rehearing denied.
JUSTICE KAVANAUGH took no part in the consideration or decision
of this petition.

JUNE 4, 2019

Dismissal Under Rule 46

No. 18–1131. *UNITED STATES v. FRANKLIN*. C. A. 9th Cir.
Certiorari dismissed under this Court’s Rule 46. Reported
below: 904 F. 3d 793.

JUNE 10, 2019

Dismissal Under Rule 46

No. 18–911. *INTERMOUNTAIN HEALTH CARE, INC., ET AL. v.
UNITED STATES EX REL. POLUKOFF ET AL.* C. A. 10th Cir. Cer-
tiorari dismissed under this Court’s Rule 46.2. Reported below:
895 F. 3d 730.

Certiorari Granted—Vacated and Remanded

No. 18–1070. *VILLAGE OF LINCOLNSHIRE, ILLINOIS, ET AL. v.
INTERNATIONAL UNION OF OPERATING ENGINEERS LOCAL 399
ET AL.* C. A. 7th Cir. Certiorari granted, judgment vacated,
and case remanded with instructions to direct the District Court
to dismiss the case as moot. See *United States v. Munsingwear,
Inc.*, 340 U.S. 36 (1950). Reported below: 905 F. 3d 995.

Miscellaneous Orders

No. 18M165. *DAVIS v. KANSAS*. Motion for leave to proceed
as a veteran denied. JUSTICE KAGAN took no part in the consid-
eration or decision of this motion.

No. 18M166. *DOE v. UNITED STATES*. Motion for leave to file
petition for writ of certiorari under seal with redacted copies for
the public record granted.

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No. 18M167. *BAOUCH ET AL. v. WERNER ENTERPRISES, INC., DBA WERNER TRUCKING, ET AL.* Motion of respondents to file petition for writ of certiorari under seal with redacted copies for the public record denied.

No. 18–8377. *BOOKER v. JOHNSON ET AL.* C. A. 4th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [587 U. S. 936] denied.

No. 18–8804. *RAYMOND v. ROY ET AL.* Ct. App. Tex., 4th Dist. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until July 1, 2019, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 18–8541. *IN RE JONES*;

No. 18–9288. *IN RE FIELDS*; and

No. 18–9289. *IN RE HALEY.* Petitions for writs of habeas corpus denied.

No. 18–9278. *IN RE MCCLINTON.* Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of habeas corpus dismissed. See this Court’s Rule 39.8. As petitioner has repeatedly abused this Court’s process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin v. District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

No. 18–8722. *IN RE SHEPPARD.* Petition for writ of mandamus denied.

Certiorari Granted

No. 17–1498. *ATLANTIC RICHFIELD Co. v. CHRISTIAN ET AL.* Sup. Ct. Mont. Certiorari granted. Reported below: 390 Mont. 76, 408 P. 3d 515.

No. 18–1109. *McKINNEY v. ARIZONA.* Sup. Ct. Ariz. Certiorari granted. Reported below: 245 Ariz. 225, 426 P. 3d 1204.

No. 18–1116. *INTEL CORPORATION INVESTMENT POLICY COMMITTEE ET AL. v. SULYMA.* C. A. 9th Cir. Certiorari granted. Reported below: 909 F. 3d 1069.

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No. 18–935. *MONASKY v. TAGLIERI*. C. A. 6th Cir. Motion of Sanctuary for Families et al. for leave to file brief as *amici curiae* granted. Certiorari granted. Reported below: 907 F. 3d 404.

No. 18–1171. *COMCAST CORP. v. NATIONAL ASSOCIATION OF AFRICAN AMERICAN-OWNED MEDIA ET AL.* C. A. 9th Cir. Certiorari granted limited to Question 1 presented by the petition. Reported below: 743 Fed. Appx. 106.

Certiorari Denied

No. 18–928. *MIDWEST MACHINING, INC. v. MCCLELLAN*. C. A. 6th Cir. Certiorari denied. Reported below: 900 F. 3d 297.

No. 18–936. *KETTLER v. UNITED STATES*; and
No. 18–7451. *COX v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 906 F. 3d 1170.

No. 18–953. *FAWZER v. BARR, ATTORNEY GENERAL*. C. A. 2d Cir. Certiorari denied. Reported below: 755 Fed. Appx. 72.

No. 18–970. *MITCHELL ET AL. v. TULALIP TRIBES OF WASHINGTON*. C. A. 9th Cir. Certiorari denied. Reported below: 740 Fed. Appx. 600.

No. 18–984. *KING MOUNTAIN TOBACCO Co., INC. v. UNITED STATES* (two judgments). C. A. 9th Cir. Certiorari denied. Reported below: 899 F. 3d 954 (first judgment); 745 Fed. Appx. 700 (second judgment).

No. 18–1132. *SMITH v. MAYS, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–1137. *LES SCHWAB TIRE CENTERS OF PORTLAND, INC., ET AL. v. WILCOX, INDIVIDUALLY AND AS THE PERSONAL REPRESENTATIVE OF THE ESTATE OF WILCOX*. Ct. App. Ore. Certiorari denied. Reported below: 293 Ore. App. 452, 428 P. 3d 900.

No. 18–1156. *MORGENTHAU VENTURE PARTNERS, LLC, ET AL. v. KIMMEL*. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 254 So. 3d 958.

No. 18–1160. *TECK METALS LTD., FKA TECK COMINCO METALS, LTD. v. CONFEDERATED TRIBES OF THE COLVILLE RESERVATION ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 905 F. 3d 565.

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No. 18–1223. *VILLENA ET AL. v. IANCU, DIRECTOR, UNITED STATES PATENT AND TRADEMARK OFFICE*. C. A. Fed. Cir. Certiorari denied. Reported below: 745 Fed. Appx. 374.

No. 18–1266. *O’LEARY v. AETNA LIFE INSURANCE CO.* C. A. 11th Cir. Certiorari denied. Reported below: 750 Fed. Appx. 896.

No. 18–1281. *MILLIMAN v. RANDALL*. Ct. App. Cal., 4th App. Dist., Div. 3. Certiorari denied.

No. 18–1288. *COULTER v. ADT SECURITY SERVICES ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 744 Fed. Appx. 615.

No. 18–1295. *DE STENO ET AL. v. KELLY SERVICES, INC.* C. A. 6th Cir. Certiorari denied. Reported below: 760 Fed. Appx. 379.

No. 18–1296. *SURIANO-LAINE v. BARR, ATTORNEY GENERAL*. C. A. 5th Cir. Certiorari denied. Reported below: 751 Fed. Appx. 563.

No. 18–1297. *NEW DOE CHILD ET AL. v. UNITED STATES ET AL.* C. A. 8th Cir. Certiorari denied. Reported below: 901 F. 3d 1015.

No. 18–1301. *BAUTISTA-DELACRUZ v. BARR, ATTORNEY GENERAL*. C. A. 9th Cir. Certiorari denied. Reported below: 742 Fed. Appx. 294.

No. 18–1311. *CARDILLO v. NEARY, CLERK, SUPREME COURT OF NEW JERSEY, ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 756 Fed. Appx. 150.

No. 18–1330. *DAVIS v. O’CONNOR*. C. A. 9th Cir. Certiorari denied.

No. 18–1345. *KINNEY v. CUELLAR ET AL.* C. A. 9th Cir. Certiorari denied.

No. 18–1379. *GODWIN v. DAVEY, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 18–1397. *PRISM TECHNOLOGIES LLC v. SPRINT SPECTRUM L. P., DBA SPRINT PCS*. C. A. Fed. Cir. Certiorari denied. Reported below: 757 Fed. Appx. 980.

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No. 18–1402. *STANLEY ET AL. v. UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA*. C. A. D. C. Cir. Certiorari denied.

No. 18–1405. *TAYLOR v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 757 Fed. Appx. 194.

No. 18–7693. *DRESSNER v. LOUISIANA*. Sup. Ct. La. Certiorari denied. Reported below: 2018–0828 (La. 10/29/18), 255 So. 3d 537.

No. 18–7857. *JONES v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 18–8003. *DANNOLFO v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS*. C. A. 11th Cir. Certiorari denied.

No. 18–8214. *RABY v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied. Reported below: 907 F. 3d 880.

No. 18–8669. *ARLOTTA v. HERATY ET AL.* C. A. 2d Cir. Certiorari denied.

No. 18–8683. *DUCKETT v. FLORIDA*. Sup. Ct. Fla. Certiorari denied. Reported below: 260 So. 3d 230.

No. 18–8687. *OGLE v. OHIO DEPARTMENT OF REHABILITATION AND CORRECTION*. C. A. 6th Cir. Certiorari denied.

No. 18–8689. *MUIR v. FERGUSON, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT PHOENIX, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 18–8693. *LARSON v. HOENIG, GENERAL COUNSEL, NATIONAL INDIAN GAMING COMMISSION, ET AL.* C. A. 7th Cir. Certiorari denied.

No. 18–8697. *BANKS v. PENNYMAC HOLDINGS, LLC, FKA PENNYMAC MORTGAGE INVESTMENT TRUST HOLDINGS I, LLC*. Sup. Ct. Pa. Certiorari denied.

No. 18–8702. *CARTER v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS*. Sup. Ct. Fla. Certiorari denied.

No. 18–8704. *ALEXANDER v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied.

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No. 18–8706. *MARTIN v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied.

No. 18–8707. *CARLYLE v. CAMPBELL, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–8709. *ADEYINKA v. HARRIS COUNTY, TEXAS, ET AL.* C. A. 5th Cir. Certiorari denied.

No. 18–8727. *WIGGINS v. PAYNE, WARDEN*. C. A. 8th Cir. Certiorari denied.

No. 18–8728. *THORESEN v. MINNESOTA*. Sup. Ct. Minn. Certiorari denied. Reported below: 921 N. W. 2d 547.

No. 18–8733. *McELVAIN v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 18–8734. *PHILLIPS v. ILLINOIS*. App. Ct. Ill., 4th Dist. Certiorari denied. Reported below: 2017 IL App (4th) 160557, 92 N. E. 3d 544.

No. 18–8736. *ESPINOZA ET AL. v. SAN BENITO CONSOLIDATED INDEPENDENT SCHOOL DISTRICT*. C. A. 5th Cir. Certiorari denied. Reported below: 753 Fed. Appx. 216.

No. 18–8744. *MIESEGAES v. DEPARTMENT OF HOMELAND SECURITY ET AL.* C. A. 9th Cir. Certiorari denied.

No. 18–8746. *DREVALEVA v. CALIFORNIA DEPARTMENT OF INDUSTRIAL RELATIONS, DIVISION OF LABOR STANDARDS ENFORCEMENT*. Ct. App. Cal., 1st App. Dist., Div. 4. Certiorari denied.

No. 18–8751. *RAINEY v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied.

No. 18–8754. *POMEROY v. MUNICIPALITY OF ANCHORAGE, ALASKA*. Sup. Ct. Alaska. Certiorari denied.

No. 18–8756. *WILLIAMS v. KURK ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 730 Fed. Appx. 516.

No. 18–8757. *TINCHER v. BERNERS-LEE*. Ct. App. Colo. Certiorari denied.

No. 18–8765. *YOUNG v. DUNCAN ET AL.* C. A. 2d Cir. Certiorari denied.

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No. 18–8770. *RUGAMBA v. CUOMO, GOVERNOR OF NEW YORK*.
C. A. 2d Cir. Certiorari denied.

No. 18–8774. *TURNER v. NEVADA ET AL.* Ct. App. Nev. Cer-
tiorari denied. Reported below: 134 Nev. 1022.

No. 18–8780. *HIGGINS v. MASSACHUSETTS DEPARTMENT OF*
TRANSITIONAL ASSISTANCE. C. A. 1st Cir. Certiorari denied.

No. 18–8788. *MOORE v. NAGY, WARDEN*. C. A. 6th Cir. Cer-
tiorari denied.

No. 18–8809. *B. C. v. FLORIDA DEPARTMENT OF CHILDREN*
AND FAMILIES. Sup. Ct. Fla. Certiorari denied.

No. 18–8813. *BULTMAN v. CIGNA GROUP INSURANCE CO.*
ET AL. C. A. 8th Cir. Certiorari denied.

No. 18–8823. *AL OBAIDY v. MCALEENAN, ACTING SECRETARY*
OF HOMELAND SECURITY, ET AL. C. A. 8th Cir. Certiorari
denied.

No. 18–8836. *WOODSON v. UNITED STATES*;
No. 18–8837. *WOODSON v. UNITED STATES*;
No. 18–8838. *WOODSON v. UNITED STATES*;
No. 18–8839. *WOODSON v. UNITED STATES*; and
No. 18–8840. *WOODSON v. UNITED STATES*. C. A. 4th Cir.
Certiorari denied. Reported below: 742 Fed. Appx. 749.

No. 18–8841. *WOODSON v. BRENNAN, POSTMASTER GENERAL*.
C. A. 4th Cir. Certiorari denied. Reported below: 742 Fed.
Appx. 755.

No. 18–8864. *JOSEPH B. v. NEBRASKA*. Ct. App. Neb. Cer-
tiorari denied. Reported below: 26 Neb. App. —.

No. 18–8871. *RAMBO v. NOGAN, ADMINISTRATOR, EAST JER-*
SEY STATE PRISON, ET AL. C. A. 3d Cir. Certiorari denied.
Reported below: 762 Fed. Appx. 105.

No. 18–8877. *KNOX v. UNKNOWN PARTIES*. C. A. 6th Cir.
Certiorari denied.

No. 18–8881. *COLEMAN v. INCH, SECRETARY, FLORIDA DE-*
PARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certio-
rari denied.

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No. 18–8936. *MCINTOSH v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied.

No. 18–8937. *JOHNSON v. HOOKS, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 18–8972. *JOINER v. SUTTON, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 18–9000. *STERLING v. PASH, WARDEN*. C. A. 8th Cir. Certiorari denied.

No. 18–9022. *CARTER v. PARRIS, WARDEN*. C. A. 6th Cir. Certiorari denied. Reported below: 910 F. 3d 835.

No. 18–9036. *BROWN v. VIRGINIA ET AL.* Sup. Ct. Va. Certiorari denied.

No. 18–9052. *GRENNING v. KEY, SUPERINTENDENT, AIRWAY HEIGHTS CORRECTIONS CENTER, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 738 Fed. Appx. 546.

No. 18–9089. *GAYLE v. HOME BOX OFFICE, INC., ET AL.* C. A. 2d Cir. Certiorari denied.

No. 18–9097. *MORRIS v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–9103. *THOMAS v. CITY OF PHILADELPHIA, PENNSYLVANIA, ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 759 Fed. Appx. 110.

No. 18–9139. *GADDY v. UNITED STATES DISTRICT COURT FOR THE DISTRICT OF SOUTH CAROLINA ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 745 Fed. Appx. 507.

No. 18–9143. *FULLER v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 18–9155. *STRECKER v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 18–9168. *OWENS v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 761 Fed. Appx. 578.

No. 18–9169. *MCDANIELS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 907 F. 3d 366.

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No. 18–9172. *PITTS v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 18–9180. *ARCE-HERNANDEZ v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 18–9181. *ASKIA v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 893 F. 3d 1110.

No. 18–9183. *JONES v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 18–9188. *VON HALL v. CAIN, SUPERINTENDENT, SNAKE RIVER CORRECTIONAL INSTITUTION*. C. A. 9th Cir. Certiorari denied. Reported below: 741 Fed. Appx. 528.

No. 18–9193. *BREWER v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 915 F. 3d 408.

No. 18–9196. *MEDINA, AKA BELL, AKA BRYANT v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 918 F. 3d 774.

No. 18–9197. *MOORE v. KALLIS, WARDEN*. C. A. 4th Cir. Certiorari denied. Reported below: 750 Fed. Appx. 244.

No. 18–9200. *COX v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 756 Fed. Appx. 118.

No. 18–9202. *MASO DIAZ v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 755 Fed. Appx. 378.

No. 18–9205. *BALLESTEROS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 751 Fed. Appx. 579.

No. 18–9208. *TRINGHAM v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 18–9218. *GERANDINO-ARACENA v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 758 Fed. Appx. 279.

No. 18–9221. *HAMILTON, AKA AMUN RE EL v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 755 Fed. Appx. 953.

No. 18–9228. *EWING v. PASH, WARDEN*. C. A. 8th Cir. Certiorari denied.

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No. 18–740. *AL-ALWI v. TRUMP, PRESIDENT OF THE UNITED STATES, ET AL.* C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition. Reported below: 901 F. 3d 294.

Statement of JUSTICE BREYER respecting the denial of certiorari.

In the immediate aftermath of the terrorist attacks of September 11, 2001, Congress passed the Authorization for Use of Military Force (AUMF), 115 Stat. 224. The AUMF states that the President may “use all necessary and appropriate force against those nations, organizations, or persons he determines planned, authorized, committed, or aided” those attacks. §2(a), *ibid.* In *Hamdi v. Rumsfeld*, 542 U. S. 507 (2004), a majority of this Court understood the AUMF to permit the President to detain certain enemy combatants for the duration of the relevant conflict. *Id.*, at 517–518 (plurality opinion); *id.*, at 587 (THOMAS, J., dissenting).

Justice O’Connor’s plurality opinion cautioned that “[i]f the practical circumstances” of that conflict became “entirely unlike those of the conflicts that informed the development of the law of war,” the Court’s “understanding” of what the AUMF authorized “may unravel.” *Id.*, at 521. Indeed, in light of the “unconventional nature” of the “war on terror,” there was a “substantial prospect” that detention for the “duration of the relevant conflict” could amount to “perpetual detention.” *Id.*, at 519–521. But as this was “not the situation we face[d] as of th[at] date,” the plurality reserved the question whether the AUMF or the Constitution would permit such a result. *Id.*, at 521.

In my judgment, it is past time to confront the difficult question left open by *Hamdi*. See *Boumediene v. Bush*, 553 U. S. 723, 797–798 (2008) (“Because our Nation’s past military conflicts have been of limited duration, it has been possible to leave the outer boundaries of war powers undefined. If, as some fear, terrorism continues to pose dangerous threats to us for years to come, the Court might not have this luxury”); *Hussain v. Obama*, 572 U. S. 1079 (2014) (statement of BREYER, J., respecting denial of certiorari).

Some 17 years have elapsed since petitioner Moath Hamza Ahmed al-Alwi, a Yemeni national, was first held at the United States Naval Base at Guantanamo Bay, Cuba. In the decision below, the District of Columbia Circuit agreed with the Govern-

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ment that it may continue to detain him so long as “armed hostilities between United States forces and [the Taliban and al Qaeda] persist.” 901 F. 3d 294, 298–299 (2018). The Government represents that such hostilities are ongoing, but does not state that any end is in sight. Brief in Opposition 4–5. As a consequence, al-Alwi faces the real prospect that he will spend the rest of his life in detention based on his status as an enemy combatant a generation ago, even though today’s conflict may differ substantially from the one Congress anticipated when it passed the AUMF, as well as those “conflicts that informed the development of the law of war.” *Hamdi*, 542 U.S., at 521 (plurality opinion).

“The denial of a writ of certiorari imports no expression of opinion upon the merits of the case.” *United States v. Carver*, 260 U.S. 482, 490 (1923). I would, in an appropriate case, grant certiorari to address whether, in light of the duration and other aspects of the relevant conflict, Congress has authorized and the Constitution permits continued detention.

No. 18–854. *ALVAREZ v. CITY OF BROWNSVILLE, TEXAS*. C. A. 5th Cir. Motion of Law Professors for leave to file brief as *amici curiae* granted. Certiorari denied. Reported below: 904 F. 3d 382.

No. 18–9161. *WOOD v. UNITED STATES* (two judgments). C. A. 9th Cir. Certiorari denied.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

I dissent for the reasons set out in *Brown v. United States*, 586 U.S. 953 (2018) (SOTOMAYOR, J., dissenting from denial of certiorari).

No. 18–9215. *GILES v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. JUSTICE KAGAN took no part in the consideration or decision of this petition.

No. 18–9217. *GRUMMITT ET AL. v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 750 Fed. Appx. 519.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

I dissent for the reasons set out in *Brown v. United States*, 586 U.S. 953 (2018) (SOTOMAYOR, J., dissenting from denial of certiorari).

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Rehearing Denied

- No. 18–968. *NAJDA v. PATERAKIS*, 587 U. S. 918;
No. 18–1008. *IN RE HOLLOWELL ET AL.*, 587 U. S. 937;
No. 18–1041. *KONIECZKO ET AL. v. ADVENTIST HEALTH SYSTEM/SUNBELT, INC., ET AL.*, 587 U. S. 939;
No. 18–1050. *WU ET UX. v. PRUDENTIAL FINANCIAL, INC., ET AL.*, 587 U. S. 939;
No. 18–7677. *GEETER v. LESATZ, WARDEN*, 587 U. S. 923;
No. 18–7774. *BOYETT v. SANTISTEVAN, WARDEN, ET AL.*, 587 U. S. 942;
No. 18–7897. *OWENS v. ZUCKER ET AL.*, 587 U. S. 944;
No. 18–7899. *DEWBERRY v. THIRD CIRCUIT COURT OF MICHIGAN*, 587 U. S. 944;
No. 18–7985. *BAHRAMPOUR v. UNITED STATES*, 587 U. S. 946;
No. 18–8008. *DRAPER v. MUY PIZZA SOUTHEAST LLC, DBA PIZZA HUT*, 587 U. S. 947;
No. 18–8035. *ADIGUN v. EXPRESS SCRIPTS, INC.*, 587 U. S. 962;
No. 18–8118. *DAVIS v. LOUISIANA*, 587 U. S. 948; and
No. 18–8223. *YOUNG v. OLIVER, JUDGE, SUPERIOR COURT OF CONNECTICUT, TOLLAND JUDICIAL DISTRICT, ET AL.*, 587 U. S. 976. Petitions for rehearing denied.

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Appeal Dismissed

- No. 18–1134. *VIRGINIA HOUSE OF DELEGATES ET AL. v. BETHUNE-HILL ET AL.* Appeal from D. C. E. D. Va. dismissed for want of jurisdiction. See *Virginia House of Delegates v. Bethune-Hill*, 587 U. S. 658 (2019). Reported below: 368 F. Supp. 3d 872.

Certiorari Granted—Vacated and Remanded

- No. 17–1445. *UNITED STATES v. HERROLD*. C. A. 5th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Quarles v. United States*, 587 U. S. 645 (2019). Reported below: 883 F. 3d 517.

- No. 18–547. *KLEIN ET VIR v. OREGON BUREAU OF LABOR AND INDUSTRIES*. Ct. App. Ore. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Masterpiece Cakeshop, Ltd. v. Colorado Civil Rights Comm’n*,

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584 U.S. 617 (2018). Reported below: 289 Ore. App. 507, 410 P. 3d 1051.

No. 18–7036. *RICHARDSON v. UNITED STATES*. C. A. 6th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for the court to consider the First Step Act of 2018, Pub. L. 115–391. Reported below: 906 F. 3d 417.

Certiorari Dismissed

No. 18–8789. *EASTERWOOD v. OKLAHOMA*. Ct. Crim. App. Okla. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court’s Rule 39.8.

Miscellaneous Orders

No. 18M168. *EKWUNIFE v. CITY OF PHILADELPHIA, PENNSYLVANIA, ET AL.* Motion for leave to file petition for writ of certiorari with supplemental appendix under seal granted.

No. 18M169. *STREETER v. WALDEN UNIVERSITY, LLC, ET AL.* Motion to direct the Clerk to file petition for writ of certiorari out of time under this Court’s Rule 14.5 denied.

No. 18M170. *BUTLER v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*;

No. 18M171. *BAGWELL v. BANK OF AMERICA, N. A.*; and

No. 18M172. *CHARLES v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 141, Orig. *TEXAS v. NEW MEXICO ET AL.* Motion of Nathan Boyd Estate et al. for leave to intervene referred to the Special Master. [For earlier order herein, see, *e. g.*, 584 U.S. 975.]

No. 17–1672. *UNITED STATES v. HAYMOND*. C. A. 10th Cir. [Certiorari granted, 586 U.S. 960.] Motion of respondent for appointment of counsel granted, and William D. Lunn, Esq., of Tulsa, Okla., is appointed to serve as counsel for respondent in this case.

No. 18–1291. *THURMAN ET AL. v. JUDICIAL CORRECTION SERVICES, INC., ET AL.*, 587 U.S. 1026. Motion of Fane Lozman for leave to file brief as *amicus curiae* granted.

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No. 18–1293. EVERGREEN FREEDOM FOUNDATION, DBA FREEDOM FOUNDATION *v.* WASHINGTON, 587 U. S. 1026. Motion of National Right to Work Legal Defense Foundation, Inc., for leave to file brief as *amicus curiae* granted.

No. 18–8006. IN RE EVANS. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [586 U. S. 1221] denied.

No. 18–9388. IN RE RANDALL;

No. 18–9403. IN RE JOHNSON; and

No. 18–9437. IN RE WESTE. Petitions for writs of habeas corpus denied.

No. 18–9378. IN RE TAE HON CHON. Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of habeas corpus dismissed. See this Court's Rule 39.8.

No. 18–8790. IN RE BACKSTROM. Petition for writ of mandamus denied.

No. 18–8805. IN RE SCOTT; and

No. 18–8919. IN RE DREVALEVA. Petitions for writs of mandamus and/or prohibition denied.

No. 18–9276. IN RE AVILA. Petition for writ of prohibition denied.

Certiorari Denied

No. 17–1189. AVILA TORREZ *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 869 F. 3d 291.

No. 17–1455. JORDAN *v.* CITY OF DARIEN, GEORGIA, ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 698 Fed. Appx. 576.

No. 17–1686. RPX CORP. *v.* CHANBOND LLC. C. A. Fed. Cir. Certiorari denied. Reported below: 780 Fed. Appx. 866.

No. 17–7224. SECORD *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 17–7496. FERGUSON *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 868 F. 3d 514.

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No. 17–8153. *MOORE v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 17–9127. *HERROLD v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 883 F. 3d 517.

No. 18–750. *JTEKT CORP. v. GKN AUTOMOTIVE LTD.* C. A. Fed. Cir. Certiorari denied. Reported below: 898 F. 3d 1217.

No. 18–781. *BALTIMORE COUNTY, MARYLAND v. EQUAL EMPLOYMENT OPPORTUNITY COMMISSION*. C. A. 4th Cir. Certiorari denied. Reported below: 904 F. 3d 330.

No. 18–940. *HANCOCK v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied. Reported below: 906 F. 3d 387.

No. 18–1052. *RENTERIA v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 903 F. 3d 326.

No. 18–1053. *ASHLAND SPECIALTY CO., INC. v. STEAGER, WEST VIRGINIA STATE TAX COMMISSIONER*. Sup. Ct. App. W. Va. Certiorari denied. Reported below: 241 W. Va. 1, 818 S. E. 2d 827.

No. 18–1157. *VEGA v. OHIO*. Sup. Ct. Ohio. Certiorari denied. Reported below: 154 Ohio St. 3d 569, 2018-Ohio-4002, 116 N. E. 3d 1262.

No. 18–1177. *PETERS, AS EXECUTOR OF THE ESTATE OF MCKELVEY, DECEASED v. COMMISSIONER OF INTERNAL REVENUE*. C. A. 2d Cir. Certiorari denied. Reported below: 906 F. 3d 26.

No. 18–1192. *LITTLE SISTERS OF THE POOR JEANNE JUGAN RESIDENCE v. CALIFORNIA ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 911 F. 3d 558.

No. 18–1197. *BROOKHART, ACTING WARDEN v. LEE*. C. A. 7th Cir. Certiorari denied. Reported below: 922 F. 3d 772.

No. 18–1303. *COLBERT v. MITCHELL*. Ct. App. Cal., 1st App. Dist., Div. 2. Certiorari denied.

No. 18–1315. *HMONG ET AL. v. LAO PEOPLE'S DEMOCRATIC REPUBLIC ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 136.

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No. 18–1316. *NETTLES v. BULLINGTON ET AL.* C. A. 6th Cir. Certiorari denied.

No. 18–1319. *THOMAS v. WILKIE, SECRETARY OF VETERANS AFFAIRS.* C. A. Fed. Cir. Certiorari denied. Reported below: 748 Fed. Appx. 328.

No. 18–1333. *JONES ET AL. v. KEITZ ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 738 Fed. Appx. 503.

No. 18–1339. *FORNESA ET AL. v. FIFTH THIRD MORTGAGE CO.* C. A. 5th Cir. Certiorari denied. Reported below: 897 F. 3d 624.

No. 18–1356. *ADETU ET AL. v. SIDWELL FRIENDS SCHOOL.* Ct. App. D. C. Certiorari denied. Reported below: 201 A. 3d 580.

No. 18–1359. *GRESHAM v. TENNESSEE.* Ct. Crim. App. Tenn. Certiorari denied.

No. 18–1381. *SUPPLY PRO SORBENTS, LLC v. RINGCENTRAL, INC.* C. A. 9th Cir. Certiorari denied. Reported below: 743 Fed. Appx. 124.

No. 18–1390. *TALLEY v. OCWEN LOAN SERVICING, LLC, ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 744 Fed. Appx. 162.

No. 18–1392. *BARONE v. WELLS FARGO BANK, N. A.* C. A. 11th Cir. Certiorari denied. Reported below: 757 Fed. Appx. 877.

No. 18–1423. *COOPER v. UNITED STATES.* C. A. Armed Forces. Certiorari denied. Reported below: 78 M. J. 283.

No. 18–1425. *CHAGANTI v. COMMISSIONER OF INTERNAL REVENUE.* C. A. 8th Cir. Certiorari denied. Reported below: 745 Fed. Appx. 259.

No. 18–1433. *BALKANY v. UNITED STATES.* C. A. 2d Cir. Certiorari denied. Reported below: 751 Fed. Appx. 104.

No. 18–1436. *JONES v. UNITED STATES.* C. A. 7th Cir. Certiorari denied. Reported below: 751 Fed. Appx. 937.

No. 18–8016. *GOFF v. OHIO.* Sup. Ct. Ohio. Certiorari denied. Reported below: 154 Ohio St. 3d 218, 2018-Ohio-3763, 113 N. E. 3d 490.

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No. 18–8050. *THOMPSON v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 896 F. 3d 155.

No. 18–8125. *WALKER v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 900 F. 3d 1012.

No. 18–8386. *APELT v. RYAN, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS*. C. A. 9th Cir. Certiorari denied. Reported below: 878 F. 3d 800.

No. 18–8393. *OVALLES v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 905 F. 3d 1300.

No. 18–8415. *LOTTER v. NEBRASKA*. Sup. Ct. Neb. Certiorari denied. Reported below: 301 Neb. 125, 917 N. W. 2d 850.

No. 18–8417. *JACKSON v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 757 Fed. Appx. 547.

No. 18–8426. *LYNCH v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 903 F. 3d 1061.

No. 18–8731. *NOGUERA v. SMITH, WARDEN, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 756 Fed. Appx. 685.

No. 18–8768. *ROBINSON v. MAWER ET AL.* C. A. 6th Cir. Certiorari denied.

No. 18–8787. *DOUCE AL-DEY v. CITY OF NEW YORK, NEW YORK*. Ct. App. N. Y. Certiorari denied. Reported below: 31 N. Y. 3d 1136, 106 N. E. 3d 743.

No. 18–8800. *WINN v. METZGER, WARDEN, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 18–8802. *VERNON, AKA MIMS v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 18–8806. *DUTTON v. MCCREA*. Super. Ct. Pa. Certiorari denied. Reported below: 179 A. 3d 617.

No. 18–8812. *BARR v. SHAPIRO, ATTORNEY GENERAL OF PENNSYLVANIA, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 18–8815. *REICH v. SLAGLE, CORRECTIONAL ADMINISTRATOR, MOUNTAIN VIEW CORRECTIONAL INSTITUTION*. C. A. 4th Cir. Certiorari denied. Reported below: 744 Fed. Appx. 803.

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No. 18–8820. *DECK v. JENNINGS, WARDEN*. C. A. 8th Cir. Certiorari denied.

No. 18–8835. *DAVIS v. KIA MOTORS AMERICA, INC.* C. A. 4th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 516.

No. 18–8848. *ROBINSON v. PENNSYLVANIA*. Sup. Ct. Pa. Certiorari denied. Reported below: 651 Pa. 190, 204 A. 3d 326.

No. 18–8849. *ROBINSON v. WHITE ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 746 Fed. Appx. 214.

No. 18–8850. *SHAW v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION, ET AL.* C. A. 5th Cir. Certiorari denied.

No. 18–8851. *SMITH v. GEORGIA*. Sup. Ct. Ga. Certiorari denied.

No. 18–8853. *BROWN v. CALIFORNIA*. Ct. App. Cal., 2d App. Dist., Div. 8. Certiorari denied.

No. 18–8858. *WARREN v. TEXAS*. Ct. App. Tex., 2d Dist. Certiorari denied.

No. 18–8859. *BORDEN v. CHEAHA REGIONAL MENTAL HEALTH CENTER, INC.* C. A. 11th Cir. Certiorari denied. Reported below: 760 Fed. Appx. 828.

No. 18–8863. *TURNBULL v. JOHNSON, WARDEN*. Sup. Ct. Ga. Certiorari denied.

No. 18–8867. *BROWN v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 18–8875. *BROWN v. BONDI, ATTORNEY GENERAL OF FLORIDA, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 18–8876. *LOGAN v. DISTRICT ATTORNEY OF ALLEGHENY COUNTY, PENNSYLVANIA, ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 752 Fed. Appx. 119.

No. 18–8878. *JARA v. STANDARD PARKING ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 753 Fed. Appx. 558.

No. 18–8883. *JESSUP v. CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS*. C. A. 4th Cir. Certiorari denied. Reported below: 746 Fed. Appx. 286.

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No. 18–8884. *BROWN v. CALIFORNIA*. Ct. App. Cal., 3d App. Dist. Certiorari denied.

No. 18–8906. *WILSON v. RUSSELL ET AL.* C. A. 8th Cir. Certiorari denied.

No. 18–8908. *DEMOUCHET v. VANNOY, WARDEN*. C. A. 5th Cir. Certiorari denied.

No. 18–8942. *AKARD v. CARTER, COMMISSIONER, INDIANA DEPARTMENT OF CORRECTION*. C. A. 7th Cir. Certiorari denied.

No. 18–8958. *DAVALLOO v. LAMANNA, ACTING SUPERINTENDENT, BEDFORD HILLS CORRECTIONAL FACILITY*. C. A. 2d Cir. Certiorari denied.

No. 18–8990. *REEDER v. WHELDON ET AL.* C. A. 2d Cir. Certiorari denied.

No. 18–8991. *ROJAS-VEGA v. IMMIGRATION AND CUSTOMS ENFORCEMENT ET AL.* C. A. D. C. Cir. Certiorari denied.

No. 18–8992. *LORRAINE v. OHIO*. Ct. App. Ohio, 11th App. Dist., Trumbull County. Certiorari denied. Reported below: 2018-Ohio-3325, 120 N. E. 3d 33.

No. 18–8994. *WOLF v. OSHEROW ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 264.

No. 18–9038. *PETERS v. ILLINOIS*. App. Ct. Ill., 2d Dist. Certiorari denied. Reported below: 2018 IL App (2d) 150650, 99 N. E. 3d 489.

No. 18–9074. *FRANCOIS v. VANNOY, WARDEN*. C. A. 5th Cir. Certiorari denied.

No. 18–9101. *MONTANEZ v. WALOWSKI*. Sup. Ct. Ill. Certiorari denied.

No. 18–9123. *MCCLENTON v. CALIFORNIA*. Ct. App. Cal., 2d App. Dist., Div. 4. Certiorari denied.

No. 18–9154. *SMITH v. CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS*. C. A. 4th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 539.

No. 18–9163. *HORRELL v. DOWNEY, SHERIFF, KANKAKEE COUNTY, ILLINOIS*. C. A. 7th Cir. Certiorari denied.

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No. 18–9192. *BALICE v. UNITED STATES*. C. A. 3d Cir. Certiorari denied.

No. 18–9212. *MCCRUDDEN v. UNITED STATES ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 763 Fed. Appx. 142.

No. 18–9213. *PAINE v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 754 Fed. Appx. 489.

No. 18–9219. *THOMAS v. MEKO, WARDEN*. C. A. 6th Cir. Certiorari denied. Reported below: 915 F. 3d 1071.

No. 18–9224. *ILLARRAMENDI v. SECURITIES AND EXCHANGE COMMISSION ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 732 Fed. Appx. 10.

No. 18–9231. *LEACHMAN v. TEXAS*. Ct. App. Tex., 1st Dist. Certiorari denied. Reported below: 554 S. W. 3d 730.

No. 18–9233. *PERALES v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 752 Fed. Appx. 179.

No. 18–9236. *GONZALEZ ET AL. v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 905 F. 3d 165.

No. 18–9240. *CORDOBA v. UNITED STATES*. C. A. 2d Cir. Certiorari denied.

No. 18–9241. *SEALED APPELLANT v. SEALED APPELLEE*. C. A. 5th Cir. Certiorari denied. Reported below: 900 F. 3d 663.

No. 18–9242. *HAYDEN v. MAINE*. Sup. Jud. Ct. Me. Certiorari denied.

No. 18–9243. *ALIGWEKWE v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 743 Fed. Appx. 970.

No. 18–9245. *DE-LA-ROSA v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 751 Fed. Appx. 597.

No. 18–9248. *PHILLIPS v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 763 Fed. Appx. 589.

No. 18–9255. *RAM v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 18–9256. *SYED v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.